



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

March 3, 2025

### POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202308544 (Incident Date: September 9, 2023) regarding Detective Estharlin Lopez, Tax No. 959766 (PODS Case No. C-032921)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Detective Estharlin Lopez, and has determined that his actions do not warrant disciplinary action.

After reviewing the facts and circumstances of this matter, and the relevant video footage, it is clear the complainant acted in a violent and threatening manner and was noncompliant toward the officers. The complainant was asked multiple times to disperse from the location. Instead of complying with the officer's directions, the complainant pushed Detective Lopez, stood in a fighting stance, and threw a punch at Detective Lopez, while Detective Lopez was trying to have the complainant leave the location. The complainant, continuing to be non-compliant, grabbed Detective Lopez's shirt and pushed back. At this point, the complainant was under arrest, and Detective Lopez utilized a series of hand strikes to gain compliance. It has been determined that the actions of Detective Lopez were proper and complied with Department guidelines. Detective Lopez used a reasonable amount of force to gain control of the complainant, and place him under arrest.

Furthermore, our Internal Affairs Bureau (IAB), has investigated this matter. IAB concluded that Detective Lopez utilized force to overcome resistance and active aggression, and that Detective Lopez's actions were lawful and proper. The Police Commissioner agrees with IAB's determination in this case. Therefore, based on the foregoing, Detective Lopez will not receive any disciplinary action for the alleged misconduct.

Sincerely,

Michael P. Baker  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office

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